

PRESIDENT + VICE PRESIDENT OF INDIA

Articles 52 – 72

Election · Qualification · Impeachment · Pardoning Power

● Headings & Definitions ● Explanations ● Highlighter = Key Facts 🎯 Exam Tip ✖ Common Mistake
🧠 Memory Trick

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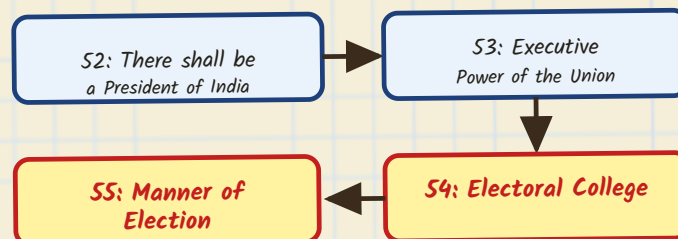
THE PRESIDENT — ARTICLES 52 TO 55

Article 52: "There shall be a President of India." This is the very first thing the Constitution establishes about the office.

Article 53: Executive Power of the Union — all the executive power of the Union is vested in the President.



🧠 Fig 1: Articles 52–55 at a Glance



Article 54 — Election: The Electoral College

Article 54 tells us **who** participates in the President's election — the **Electoral College**: elected **MPs** and elected **MLAs** only.

✗ Common Mistake

Nominated members of Parliament (like nominated Rajya Sabha members) do **NOT** participate in the President's election — only **elected** MPs and MLAs form the Electoral College.

⊕ Article 55 – Manner of Election

Article 55 tells us **how** they are elected — the manner is

Proportional Representation with Single Transferable Vote (PR-STV)



Memory Trick

54 = WHO (Electoral College) → 55 = HOW (Manner: Proportional Representation + Single Transferable Vote)

✗ Where Was It Borrowed From?

- The **offices** of President and Vice President were borrowed from the **USA**
- The **manner/procedure of election** (PR-STV) was borrowed from **Ireland**

This election is **indirect** — the people of India don't vote directly; their elected representatives (MPs/MLAs) vote on their behalf. Voting happens by **secret ballot** — nobody, not even one's own party, needs to be told who was voted for.



Exam Tip

Nomination for the presidential election requires **50 proposers and 50 seconders** — 50 people must propose the candidate's name, and 50 more must back (second) it.

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ART 56-61: TERM, QUALIFICATION + IMPEACHMENT

Article 58 – Qualification for Election as President

- Must be a **citizen of India**
- Must be at least **35 years of age**
- Must have the qualifications required to be elected as a member of the **Lok Sabha** (the Lok Sabha itself requires 25 years, but for President the age is separately fixed at 35)

Article 56 – Term of Office

The President's term is **5 years**. If a vacancy arises due to death, resignation, or removal, and a new President is elected, they too serve a full fresh term of 5 years.



Eligibility for Re-election

A President can be re-elected **any number of times** — unlike the USA, where a president can serve a maximum of only two terms.

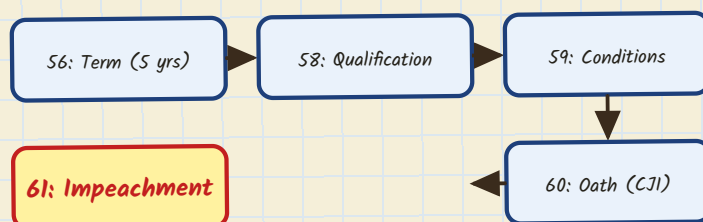
Article 59 – Conditions of Office

The President must **not be a Member of Parliament or a State Legislature**. If already an MP/MLA, they must resign that seat before assuming the presidency.

Article 60 – Oath or Affirmation

The oath of the President is administered by the **Chief Justice of India (CJI)**, and in the CJI's absence, by the **senior-most judge** of the Supreme Court available.

Fig 2: Order of Articles 56–61



Article 61 – Procedure for Impeachment

Impeachment means **removal of the President**. This system was borrowed from the **USA Constitution**. The ground for impeachment is **violation of the Constitution**.

1. The impeachment motion can be initiated in **either the Lok Sabha or the Rajya Sabha**.
2. It must be signed by **1/4th of the total members** of whichever House it originates in, and a **14-day prior notice** must be given.
3. It must then be passed by a **special majority** — majority of the total membership of the House and 2/3rd of members present and voting (whichever is the bigger number is what's needed).
4. It then goes to the other House, which **investigates the charges** — this makes the whole process **quasi-judicial** (the second House does judiciary-like work of examining charges, without actually being a court).
5. The other House must also pass it by a **special majority**.
6. The President has the **full right to represent himself** and explain why he should not be impeached.

Memory Trick

Quasi-judicial = "half-baked" judiciary work — the second House is doing judiciary-like work (examining charges) but it isn't actually a court.

Exam Tip

Sequence to remember: There shall be a President (52) → Executive Power (53) → Electoral College (54) → Manner of Election (55) → Term (56) → Qualification (58) → Conditions (59) → Oath (60) → Impeachment (61).

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ELECTORAL COLLEGE VS IMPEACHMENT

A very important comparison — **who participates in the President's election** is NOT the same group as **who participates in the President's impeachment**.

Point	Electoral College (Election)	Impeachment (Removal)
Members	Only elected MPs + elected MLAs	All MPs — elected AND nominated
MLAs' role	Yes, MLAs participate	No role for MLAs at all

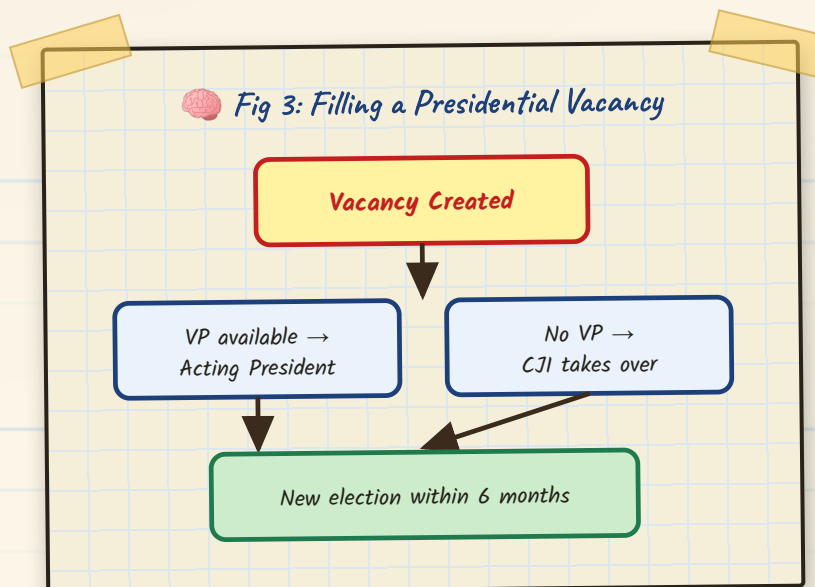
✗ Common Mistake

Don't assume the same people who elect the President also impeach him! Election Electoral College = elected MPs + elected MLAs. Impeachment = ALL MPs (elected + nominated), no MLAs whatsoever.

MLAs come from Legislative Assemblies of all **28 states**, plus the Union Territories of **Delhi and Puducherry** (which have their own Legislative Assemblies mentioned in the Constitution). Jammu & Kashmir has a Legislative Assembly too, but it is not yet mentioned in the Constitution for this purpose.

Article 62 — Filling a Vacancy

A vacancy in the President's office can be created by **death, resignation, or removal**. The resignation is given to the **Vice President** (e.g., Jagdeep Dhankhar's resignation was given to Droupadi Murmu).



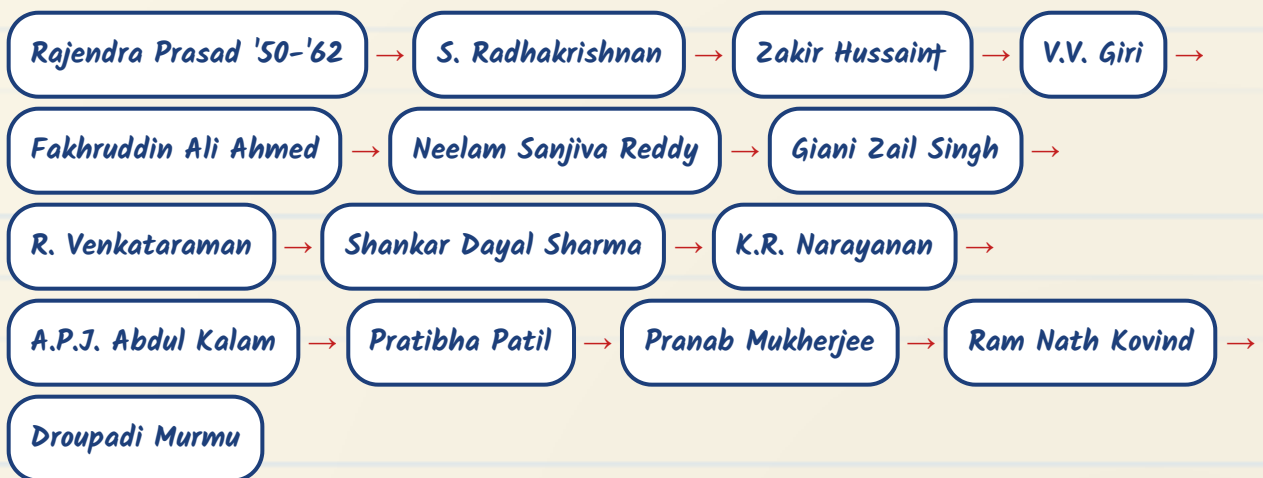
Once the President is gone, the sitting **Vice President** becomes the **Acting President** (a temporary role), and a fresh election must be held **within six months** of the vacancy. If there is no Vice President either, the **CJI** takes over as Acting President.

 *Example: When Zakir Hussain died in office, VP V.V. Giri became Acting President. When V.V. Giri resigned to contest the permanent presidential election himself, CJI M. Hidayatullah became Acting President – and after the new President took office, Hidayatullah went back to being CJI.*

Quota & Value of Votes

- **Winning quota** = $\text{Total valid votes} \div (1 + \text{number of vacancies})$, then add 1 — for the President's election there is only ONE vacancy, so the divisor is simply "1+1"
- **Value of an MLA's vote** = $(\text{population of that state} \div \text{total number of elected MLAs in that state}) \times 1/1000$
- **Value of an MP's vote** = $\text{total value of all MLAs' votes (across all states)} \div \text{total number of elected MPs (no need to further divide by 1/1000 here)}$

List of Presidents of India



Memory Trick

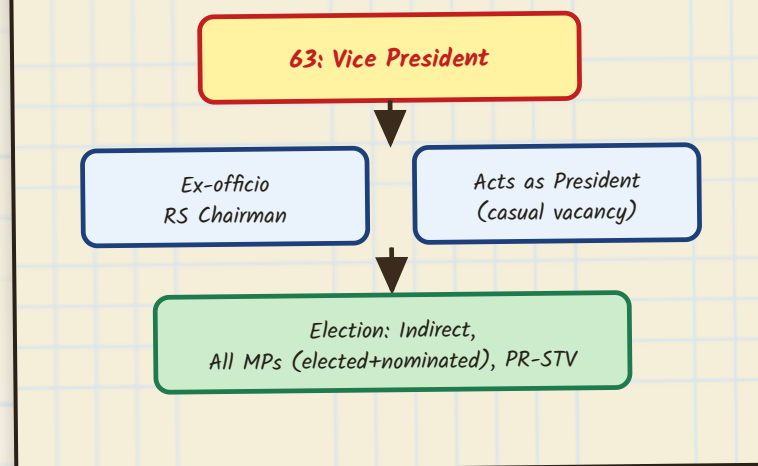
Dr. Rajendra Prasad served **two terms (1950–1962)** — the **only** President to serve two terms so far, and the longest-serving President. The 1975 Emergency (internal disturbance) was imposed during V.V. Giri & Fakhruddin Ali Ahmed's period. Droupadi Murmu is the **first tribal President** and the second woman President (after Pratibha Patil).

THE VICE PRESIDENT — ARTICLES 63 TO 71

Article 63: There shall be a Vice President of India. He is the **ex-officio Chairman of the Council of States (Rajya Sabha)** — meaning whoever becomes Vice President automatically becomes Rajya Sabha Chairman; there is no separate selection for that post.

During a **casual vacancy** of the President's office, the Vice President **acts as President** and discharges the President's functions.

Fig 4: Vice President — Key Facts



Election of Vice President

Also **indirect**, also by **Proportional Representation + Single Transferable Vote**. The Electoral College here is **all Members of Parliament** — both elected AND nominated. **MLAs have no role** in this election.

Article 67 — Term & Resignation

The Vice President's term is **5 years**. If he wishes to resign, he resigns to the **President** (the President, by contrast, resigns to the Vice President).

Removal of the Vice President

- The removal resolution can be initiated **only in the Rajya Sabha** (since he is its ex-officio Chairman)

- It needs an **effective majority** in the Rajya Sabha (majority of the current effective strength, i.e., total minus vacancies)
- It then goes to the **Lok Sabha**, where only a **simple majority** is needed
- A **14-day prior notice** is required, just like for the President

✗ Common Mistake

Unlike the President's impeachment (which can start in either House), the **Vice President's removal resolution can only start in the Rajya Sabha** — because he's the Rajya Sabha's own ex-officio Chairman!

Article 68 & Article 70/71

Article 68 covers the time for holding an election to fill a Vice President vacancy and the term of office. **Article 70** covers discharge of the President's functions in other contingencies (when the President is absent, not vacant). **Article 71** says any dispute regarding the election of the President or Vice President is decided by the **Supreme Court**, whose decision is final.

Who administers the Vice President's oath? The **President** does.



🧠 Memory Trick

V.V. Giri was the **first** Vice President to resign (to contest the presidential election). Jagdeep Dhankhar is the **third** Vice President to resign.

🎯 Exam Tip

Hamid Ansari is the longest-serving Vice President — both he and **S. Radhakrishnan** served two terms (10 years each), but Ansari edges ahead when counting exact number of days.

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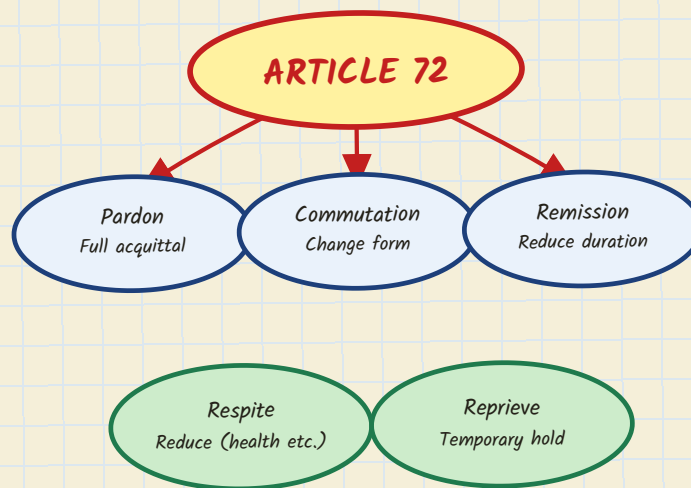
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ARTICLE 72 — PARDONING POWER OF THE PRESIDENT

The President has the power to grant pardons under Article 72. There are **five forms** of this power:

 Fig 5: Five Forms of Pardoning Power



Form	Meaning
Pardon	Complete acquittal — fully absolves the person of all charges
Commutation	Changing the form of punishment (e.g., death sentence → life imprisonment)
Remission	Form stays the same, only the duration is reduced (e.g., life imprisonment → 10 years)
Respite	Reducing the term of punishment due to special conditions (e.g., deteriorating health)
Reprieve	A temporary hold/stay on the execution of a punishment

 Memory Trick

Commutation changes the **FORM** (death → life). Remission changes only the **DURATION**, not the form (life imprisonment → 10 years). Don't mix the two up!

 Common Mistake

Respite (reduction due to special/health conditions) is often confused with Remission (a general reduction in duration) — Respite is specifically tied to a special circumstance like health.

★ Exam-Ready Summary

- **Art 52-55:** President exists, Executive Power, Electoral College (elected MPs+MLAs), Manner (PR-STV, from Ireland)
- **Art 56-61:** Term (5 yrs, unlimited re-election), Qualification (35 yrs, citizen, Lok Sabha eligible), Conditions (no MP/MLA), Oath (by CJI), Impeachment (violation of Constitution, either House, special majority, quasi-judicial)
- **Art 62:** Vacancy filled within 6 months; VP or CJI acts as President meanwhile
- **Art 63-71:** VP is ex-officio RS Chairman; election by all MPs (elected+nominated), no MLAs; removal starts only in RS
- **Art 72:** Pardon, Commutation, Remission, Respite, Reprieve

🎯 Exam Tip

Remember the story chain in one breath: **52 President exists** → **53 Executive Power** → **54 Electoral College** → **55 Manner of Election** → **56 Term** → **58 Qualification** → **59 Conditions** → **60 Oath** → **61 Impeachment** → **62 Vacancy** → **63-71 Vice President** → **72 Pardoning Power**.

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